

District- Jhenaidah

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 561A of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Mizanur Rahman

.... Accused-Petitioner

-Versus-

The State and others

.... Opposite Parties

Mr. Indrojit Kumar Molick, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 5th February 2024

By this application under Section 561A of the Code of Criminal Procedure accused Md. Mizanur Rahman has challenged the legality and propriety of judgment and order

dated 21.08.2023 passed by the learned Senior Session Judge, Jhenaidah rejecting Criminal Revision No.75 of 2023 and thereby affirming order dated 13.08.2023 passed by the learned Joint Session Judge, 1st Court, Jhenaidah in Session Case No.799 of 2021 arising out of Jhenaidah C.R. Case No.482 of 2021 rejecting an application to adduce the Witness No.2 as a Defence Witness as well as rejecting the application under Section 540 of the Code of Criminal Procedure for recall of PW1.

Mr. Indrojit Kumar Moulick, learned Advocate for the petitioner submits that the appointed Advocate of the accused petitioner could not put all the relevant and necessary questions to PW1 Md. Mostafizur Rahman at the time of cross examination. As such the accused petitioner submitted a petition for recall of above PW1 for cross examination. But the learned Joint Session Judge most illegally rejected the same which was erroneous upheld by the learned Session Judge.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the petitioner submits that in order to avoid further delay

in the conclusion of trial of above case only one prosecution cases may be recalled for cross examination.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The petitioner is the sole accused of Session Case No.799 of 2021 and he sought recall of only one Prosecution Witness for cross examination.

On consideration of above facts of the case and for avoidance of further delay in the conclusion of the trial of the case we are of the view that the ends of the justice will be met if the impugned order of the learned Session Judge is set aside and the learned Joint Session Judge is directed to recall PW1 Md. Mostafizur Rahman for cross examination.

Accordingly, we are setting aside the impugned judgment and order dated 21.08.2023 and directing the learned Senior Session Judge, Jhenaidah to recall PW1 Md. Mostafizur Rahman for cross examination within 15(fifteen) days from the date of receipt of this order and after above

examination proceed with the conclusion of trial of the case expeditiously.

With above direction this application under Section 561A of the Code of Criminal Procedure is disposed of.

MD. MASUDUR RAHMAN
BENCH OFFICER